

A
M E A S U R E

PASSED BY

The National Assembly of the Church of England

To provide for the division of the Diocese of Winchester, and for the Foundation of Bishoprics of Portsmouth and of Guildford.

[1st August 1924.]

1. This Measure may be cited as “The Diocese of Winchester (Division) Measure, 1923.” Short title.

2. The Ecclesiastical Commissioners shall receive all contributions which may be made by the public for the purposes of the endowment of the bishoprics of Portsmouth and of Guildford, and carry the respective amounts of such contributions to two funds to be called respectively “the Portsmouth Bishopric Endowment Fund,” and “the Guildford Bishopric Endowment Fund.” Such contributions may include any gift or bequest of real and personal property not exceeding the limits prescribed by this Measure for the endowment fund of each bishopric; and the powers of donors to bestow and of the Ecclesiastical Commissioners to receive such gifts shall be the same as those enacted in the Act of the second and third years of the reign of Queen Anne, chapter eleven, and of the Act of the forty-third year of the reign of King George the Third, chapter one hundred and seven, enabling donors to vest gifts in the Governors of the Bounty of Queen Anne for the augmentation of the maintenance of the poor clergy for the benefit of ministers officiating in churches and chapels. Public contributions to endowment funds.

3. Subject to the rights enjoyed by any person at the passing of this Measure, there shall, after the foundation of the new bishoprics of Portsmouth and Guildford respectively, be paid from the endowment or income of the bishopric of Winchester to each of the endowment Contribution to endowment funds from bishopric of Winchester.

funds of the bishoprics of Portsmouth and of Guildford by equal quarterly instalments the sum of eight hundred pounds a year.

Trusts of
bishopric
endowment
funds.

4. The income or endowment of the bishopric of Winchester and the endowment funds of the bishoprics of Portsmouth and Guildford shall be held by the Ecclesiastical Commissioners upon the trusts following, that is to say, upon trust to provide a net annual income of not less in the case of the bishoprics of Portsmouth and Guildford than the amounts prescribed by this Measure with respect to each of those bishoprics respectively, and not exceeding in the case of the bishopric of Winchester the sum of five thousand five hundred pounds a year, and in the case of the bishopric of Portsmouth the sum of three thousand five hundred pounds a year, and in the case of the bishopric of Guildford the sum of three thousand two hundred and fifty pounds a year, and in the case of each of the said bishoprics a fitting residence for the bishop, and subject as aforesaid upon trust for the foundation of a dean and chapter for each of the two bishoprics of Portsmouth and Guildford in such manner as may be from time to time provided by Order in Council.

Establish-
ment of
bishoprics
on provision
of sufficient
endowment.

5. Whenever the Ecclesiastical Commissioners certify to His Majesty under their common seal, with respect to the Portsmouth Bishopric Endowment Fund or the Guildford Bishopric Endowment Fund respectively, either :—

- (1) that the annual value of such endowment fund together with the annual sum which will be payable in pursuance of this Measure from the endowment or income of the bishopric of Winchester (when calculated in manner in this Measure mentioned) is not less in the case of Portsmouth than three thousand three hundred pounds a year and of Guildford than three thousand and fifty pounds a year; or
- (2) that the annual value of such endowment fund together with the annual sum which will be payable in pursuance of this Measure from the endowment or income of the bishopric of Winchester (when calculated in manner in this Measure mentioned) is not less than such respec-

tive sum as aforesaid less three hundred pounds a year, and that contributions to such fund sufficient to raise the same within five years from the date of the certificate up to such respective sum as aforesaid have been guaranteed to the satisfaction of the Commissioners;

His Majesty, by Order in Council, may found such new bishopric, with a diocese and cathedral church as provided in accordance with this Measure, and may declare the time at which such Order founding such bishopric is to come into operation.

His Majesty, by the same or any other Order in Council, may constitute the bishop of such bishopric a body corporate, and invest the bishop with all such rights, privileges and jurisdictions as are now possessed by any other bishop in England, or such of them as to His Majesty may seem meet.

In calculating the annual value of an endowment fund for the purposes of this section, there shall be included—

- (1) If a fitting episcopal residence has been provided by or to the satisfaction of the Ecclesiastical Commissioners, the annual value of such episcopal residence, which shall be reckoned at three hundred pounds; and
- (2) The net annual income of the part of the endowment fund actually invested, and such sum as the Commissioners think will be the net annual income of the part of the endowment fund not actually invested at the date of the certificate; and
- (3) Where any contribution to the endowment fund consists of an annual sum payable during life or other limited period the whole of that sum, if in the opinion of the Commissioners the like annual sum will, at the termination of such life or other period, become payable as part of the endowment fund.

Any annual sum which will be ultimately derived in pursuance of this Measure from the bishopric of Winchester shall be reckoned for the purposes of this section at the net annual sum directed by this Measure

to be paid from the endowment or income of that bishopric, if no deduction were made for first-fruits and tenths, and shall be calculated whether the annual sum is or is not for the time being actually payable to the bishopric of Portsmouth, or the bishopric of Guildford, as the case may be.

Bishops to be
subject to
metropolitan
jurisdiction.

6. The Bishops of Portsmouth and of Guildford shall be subject to the metropolitan jurisdiction of the Archbishop of Canterbury.

Cathedral
churches.

7. Such church at Portsmouth and such church at Guildford as may in each case be determined by His Majesty in Council, after consultation with the Ecclesiastical Commissioners, shall, subject to the rights of the patrons and incumbents thereof, be the cathedral churches of Portsmouth and of Guildford respectively.

Dioceses.

8. The dioceses of Portsmouth and of Guildford, when constituted, shall consist of the areas specified in Parts I. and II. respectively of the Schedule to this Measure.

The number
of bishops
sitting in
Parliament
not to be
increased.

9. The number of Lords Spiritual sitting and voting as Lords of Parliament shall not be increased by the foundation of a new bishopric in pursuance of this Measure; and whenever there is a vacancy among such Lords Spiritual by the avoidance of any of the sees of Canterbury, York, London, Durham, or Winchester, such vacancy shall be supplied by the issue of a writ of summons to the bishop acceding to the see so avoided; and if such vacancy is caused by the avoidance of any see other than one of the five sees aforesaid, such vacancy shall be supplied by the issue of a writ of summons to that bishop of a see in England who, having been longest bishop of a see in England, has not previously become entitled to such writ:

Provided, that where a bishop is translated from one see to another, and was at the date of his translation actually sitting as a Lord of Parliament, he shall not thereupon lose his right to receive a writ of summons to Parliament.

Appoint-
ment of
bishops
of new
bishoprics.

10.—(1) So long as there is not a Dean and Chapter of a new bishopric founded in pursuance of this Measure—

(i) the Archdeacon of the Isle of Wight and any other archdeacons, if there be any, and the

canons, if any, and the honorary canons in the cathedral church of Winchester holding benefices within the area of the diocese of Portsmouth shall be and shall be styled the Provisional Chapter of the said diocese, and the Archdeacon of Surrey and the canons, if any, and the honorary canons in the cathedral church of Winchester holding benefices within the area of the diocese of Guildford shall be and shall be styled the Provisional Chapter of the said diocese;

- (ii) the senior archdeacon of the diocese of Portsmouth shall be and shall be styled the President of the Provisional Chapter of the diocese of Portsmouth, and the senior archdeacon of the diocese of Guildford shall be and shall be styled President of the Provisional Chapter of the diocese of Guildford;
- (iii) upon the foundation of either of the dioceses of Portsmouth or Guildford, and upon any subsequent avoidance of either of these bishoprics respectively, His Majesty may grant to the Provisional Chapter thereof a licence under the Great Seal to proceed to the election of a bishop with a letter-missive as provided by the statute of the twenty-fifth year of the reign of King Henry the Eighth, and all such further proceedings shall be had as if the said Provisional Chapter were the Dean and Chapter pertaining to a bishopric in England founded before the passing of the Bishoprics Act, 1878 :

Provided that if honorary canonries are founded in the cathedral church of either of the new bishoprics of Portsmouth or Guildford, the holders of such honorary canonries shall, together with and under the presidency of the Archdeacon mentioned in this section, constitute the Provisional Chapter in lieu of the canons and honorary canons in the cathedral church of Winchester.

(2) From and after the foundation of such Dean and Chapter a vacancy in that bishopric shall be filled in the same manner as a vacancy in any other bishopric in England founded before the passing of the Bishopric of St. Albans Act, 1875.

Scheme of Ecclesiastical Commissioners approved by Order in Council as to courts, offices of archdeacons, and other incidental arrangements for constituting new bishopric.

11. Whenever such certificate as is in this Measure mentioned has been given by the Ecclesiastical Commissioners with respect to the endowment fund of a new bishopric, the Ecclesiastical Commissioners shall lay before His Majesty in Council for confirmation a scheme for all or any of the following matters in relation to that bishopric; namely:—

- (1) For assigning to the bishop of that bishopric all or any such courts, officers, and jurisdiction belonging to any bishop in England as it may be thought expedient to assign, and for dispensing with the confirmation or other agency of a dean and chapter in relation to any matters in which such confirmation or agency would otherwise be required, and for the custody of the spiritualities during a vacancy in the see by the Archbishop of Canterbury; and
- (2) For making such arrangements as may be thought expedient by the creation and endowment of new archdeacons or otherwise, for the archidiaconal supervision of the parishes affected by the foundation of the bishopric, and for transferring any archidiaconal dignity from the cathedral church of Winchester to the cathedral church of the new bishopric; and
- (3) For transferring (subject to any right enjoyed by any person at the passing of this Measure) to the bishop of the new bishopric the patronage of all or some of the ecclesiastical dignities and benefices situate in his diocese, the patronage of which is immediately before the foundation of the new bishopric vested in the Bishop of Winchester and the Dean and Chapter of Winchester; and
- (4) For making payable out of the endowment or income of the bishopric of Winchester such annual sums as are directed by this Measure to be paid to the Portsmouth Bishopric Endowment Fund and the Guildford Bishopric Endowment Fund respectively, subject to the payment of a proportionate part of the tenths and first-fruits payable by the Bishop of Winchester; and
- (5) For making provision whereby the annual income provided or retained under this Measure for the

Bishops of Winchester, Portsmouth and Guildford may be divided into two portions, namely, a personal stipend fund and a fund for official expenses; and

- (6) For enabling any archdeacon whose archdeaconry is affected by the foundation of the new bishopric to reside in any place in which he is residing at the date of the scheme, and for making such arrangements as may seem to the Ecclesiastical Commissioners requisite to preclude any officer holding office at the date of the passing of this Measure from being prejudiced by this Measure or any Order in Council or scheme made thereunder; and
- (7) For founding honorary canonries in the cathedral church of the new bishopric, with power to dispense with the consent of any dean and chapter so long as there is no such dean and chapter in existence for that bishopric, and to provide for the transfer to the cathedral church of the new bishopric of such non-residentiary or honorary canons in the cathedral church of Winchester as on the foundation of the new bishopric hold benefices in the diocese of the new bishopric and consent to the transfer; and
- (8) For providing for the transfer, so soon as practicable, to the registrar or other officer of the diocese of the new bishopric, from the bishop's registrar or diocesan officer in possession of the same, of all terriers, tithe apportionments, maps, plans and other documents relating to the several ecclesiastical parishes situate in the diocese of the new bishopric; and
- (9) For the rearrangement of the boundaries of the dioceses of Portsmouth, Guildford and Winchester, and of any diocese contiguous to either of them, and in relation to such rearrangement for providing in reference to archdeaconries and archdeacons, for patronage, for the transfer of non-residentiary or honorary canons, for the transfer of terriers, tithe apportionments, maps, plans and other documents, and for such other arrangements and matters, so nearly as circumstances admit, as are authorised in relation to

the bishoprics of Portsmouth and Guildford in reference to each other;

- (10) For making such other provisions and arrangements, whether similar or not to the foregoing, as may be necessary for carrying into complete effect the foundation of the new bishoprics and the scheme relating thereto.

Value of
residence
for Win-
chester.

12. If a fitting episcopal residence has been provided by or to the satisfaction of the Ecclesiastical Commissioners for the use of the Bishop of Winchester, the annual value thereof shall, for the purposes of calculating the annual value of the income or endowment of the bishopric of Winchester, be reckoned at four hundred pounds.

Further
provisions
as to
endowment
funds.

13. All annual income arising from an endowment fund under this Measure shall, until the bishopric is founded as provided by this Measure, be invested and accumulated as part of the endowment fund, but the Ecclesiastical Commissioners shall have full power to sell (discharged from all trusts), invest, manage, lease, and otherwise deal with the fund and the property on which it may for the time being be invested, in such manner as they may deem most expedient for the purposes of their trust.

The Ecclesiastical Commissioners may invest the whole or any part of the endowment fund under this Measure in the purchase of land, and may hold such land without any licence in mortmain, and may from time to time, but after the appointment of a bishop with the consent of the bishop for the time being of the bishopric, assign to such bishop and his successors, as an endowment for the bishopric, the lands so purchased, if convenient to be held by such bishopric.

The endowment of a bishopric under this Measure shall, subject to the provisions of this Measure, be deemed to be for all purposes subject to the same laws as the temporalities and endowment of any other bishopric in England.

As to
Farnham
Castle.

14.—(1) Before the Orders in Council founding the bishoprics of Portsmouth and Guildford come into operation, the Farnham Castle Committee hereinafter mentioned shall frame a scheme for the future use and disposal of Farnham Castle and Farnham Park, and the scheme so

framed shall be subject to the approval of the Ecclesiastical Commissioners, and when so approved shall be laid by the Commissioners before His Majesty in Council for confirmation.

(2) The provisions of this Measure as to the validity and publication of and the laying before Parliament of Orders in Council shall apply to an Order in Council confirming a scheme framed under this section.

(3) A scheme under this section may provide for the sale of Farnham Castle and Farnham Park or any part of the castle and park, or for the continued use thereof for purposes connected with the Church of England :

Provided that—

(i) the scheme shall have effect, subject to the rights enjoyed by any person at the passing of this Measure; and

(ii) if the scheme provides that Farnham Castle is to continue to be used for purposes connected with the Church of England, the Castle shall be transferred to and vested in the Diocesan Board of Finance for the diocese of Guildford as soon as the said Diocesan Board is constituted, and the said Diocesan Board shall thenceforth be responsible for its maintenance and up-keep (including insurance) in accordance with the provisions of the scheme.

(4) The Bishop of Winchester and the members of the Diocesan Conference of the diocese of Winchester who represent on that conference the area specified in paragraph 2 of Part II. of the Schedule to this Measure shall, for the purposes of this section, be the Farnham Castle Committee.

(5) The proceeds of the sale (if any) of Farnham Castle or Farnham Park shall, after deducting any expenses arising in connection with the scheme or the said sale, be vested in the Ecclesiastical Commissioners and be held by them in equal portions for the purposes of the endowment funds of the bishoprics of Portsmouth and of Guildford.

(6) For the purposes of any sale or transfer under this section Farnham Castle or Farnham Park or any part of the castle or park which is to be sold or transferred

shall be deemed to be vested in the Ecclesiastical Commissioners without the execution of any conveyance by the Bishop of Winchester.

Confirma-
tion of
scheme and
validity and
publication
of Orders
in Council.

15. It shall be lawful for His Majesty, by Order in Council, to confirm a scheme laid before His Majesty in pursuance of this Measure, and a scheme made in pursuance of this Measure shall be of no effect until it has been so confirmed.

An Order in Council made in pursuance of this Measure shall have effect as if it were enacted in this Measure.

An Order in Council made in pursuance of this Measure shall be published in the "London Gazette," and shall, as soon as practicable after the making thereof, be laid before both Houses of Parliament.

Saving as
to service as
incumbent
or curate in
transferred
parishes.

16. The service of any person, either before, or partly before and partly after the foundation of a new bishopric in pursuance of this Measure, or before or partly before and partly after any transfer is made in pursuance of this Measure, of an ecclesiastical parish from one diocese to another diocese, as incumbent or curate in any ecclesiastical parish which, in pursuance of this Measure is constituted part of a different diocese from that of which it formed part prior to such foundation or transfer, shall, for the purpose of qualifying such incumbent or curate to be presented or nominated to any benefice in the patronage of the chapter of any cathedral or collegiate church, be deemed to be service in the diocese in which such parish is situate at the time of the foundation or transfer, or in the diocese in which such parish is situate at the date of the presentation or nomination.

Interpreta-
tion.

17.—(1) In this Measure the expression "ecclesiastical parish" means a parish, new parish, ecclesiastical district, or place within the limits of which any parson has the exclusive cure of souls.

(2) The expression "England" in this Measure does not include any part of the Province of Wales.

(3) The Interpretation Act, 1889, shall apply to the interpretation of this Measure in like manner as it applies to an Act of Parliament and as if this Measure were an Act of Parliament.

SCHEDULE.

PROPOSALS FOR NEW BISHOPRICS.

I.—*Bishopric of Portsmouth.*

1. The bishop to be Bishop of Portsmouth.
2. The diocese to consist of the archdeaconry of the Isle of Wight, the rural deaneries of Portsmouth, Alverstoke, Havant, Petersfield (except the ecclesiastical parishes of Grayshott and Headley), and Bishops Waltham (except the ecclesiastical parishes of Bishopstoke, Bursledon, Eastleigh, Fair Oak, and Hedge End), and the ecclesiastical parish of Blackmoor, now in the diocese of Winchester.

II.—*Bishopric of Guildford.*

1. The bishop to be Bishop of Guildford.
2. The diocese to consist of the archdeaconry of Surrey and the ecclesiastical parishes of Aldershot, Aldershot Holy Trinity, Ash with Ash Vale, Cove, Crondall, Crookham, Ewshott, Farnborough, Farnborough St. Mark, Fleet, Hawley, Minley, Yateley. Grayshott and Headley, now in the diocese of Winchester.

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